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## SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

This Software as a Service Subscription Agreement (·Agreement·) is entered into as of January 15, 2025 (·Effective Date·), by and between ZenithCloud Solutions, Inc., a Delaware corporation with its principal place of business at 4527 Redwood Avenue, San Jose, California 95123 (·Provider·), and GreenWave Technologies LLC, a California limited liability company with its principal place of business at 1021 Oak Street, Palo Alto, California 94301 (·Customer·).

## RECITALS

WHEREAS, Provider offers its proprietary cloud-based customer relationship management software, known as ·ZenithCRM· (·Service·); and

WHEREAS, Customer desires to subscribe to the Service subject to the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

### 1. DEFINITIONS

1.1 ·Authorized Users· means Customer's employees, contractors, or agents who are authorized to use the Service under this Agreement, and for whom subscriptions are purchased.

1.2 ·Confidential Information· means information disclosed by one party to the other in connection with this Agreement which is designated as confidential or that reasonably should be understood to be confidential.

1.3 ·Subscription Term· means the initial and any renewal periods for which Customer subscribes to the Service, as set forth in Section 3.

1.4 ·Service· means the ZenithCRM software provided as a hosted service through Provider's cloud infrastructure.

### 2. SERVICE LICENSE AND ACCESS

2.1 License Grant. Subject to the terms and conditions of this Agreement, Provider grants Customer a non-exclusive, non-transferable, worldwide right to access and use the Service during the Subscription Term solely for Customer's internal business purposes.

2.2 Restrictions. Customer shall not (a) sublicense, sell, or distribute the Service to any third party; (b) reverse engineer, decompile, or disassemble any software component of the Service except as expressly permitted by law; or (c) use the Service to store or transmit any unlawful or infringing content.

### 3. SUBSCRIPTION TERM AND RENEWAL

3.1 Initial Term. The initial Subscription Term shall commence on the Effective Date and continue for one (1) year, ending January 14, 2026, unless terminated earlier as provided herein.

3.2 Automatic Renewal. Unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current Subscription Term, the Subscription shall automatically renew for successive one (1) year periods under the same terms and conditions.

3.3 Notice of Non-Renewal. Any notice of non-renewal must be delivered in accordance with Section 12 and received no later than October 16, 2025, for the initial term, and correspondingly for subsequent terms.

### 4. FEES AND PAYMENT

4.1 Subscription Fees. Customer agrees to pay Provider an annual subscription fee of \$78,000.00 USD (Subscription Fees), based on 200 Authorized Users at \$390 per user per year.

4.2 Payment Terms. Provider shall invoice Customer within five (5) business days of the Effective Date and annually thereafter on the anniversary of the Effective Date. Payment is due within thirty (30) days of invoice date. Overdue payments shall accrue interest at 1.5% per month or the maximum permitted by law, whichever is less.

4.3 Taxes. Customer shall be responsible for all applicable sales, use, value-added, and similar taxes, excluding taxes based on Provider's net income.

## 5. USE OF SERVICE AND CUSTOMER RESPONSIBILITIES

5.1 Access Credentials. Customer shall maintain the confidentiality of all access credentials and notify Provider immediately of any unauthorized use.

5.2 Compliance. Customer agrees to comply with all applicable laws and regulations in connection with its use of the Service.

5.3 Data Backup. Customer is responsible for maintaining its own backup copies of any data uploaded to the Service. Provider will maintain standard backup procedures as described in the Service documentation.

## 6. PROVIDER OBLIGATIONS

6.1 Service Availability. Provider will use commercially reasonable efforts to make the Service available 99.5% of the time, excluding scheduled maintenance windows and force majeure events.

6.2 Support. Provider shall provide technical support via email and phone during Provider's normal business hours, Monday through Friday 8:00 AM to 6:00 PM Pacific Time.

## 7. CONFIDENTIALITY

7.1 Confidentiality Obligations. Each party agrees to hold the other party's Confidential Information in strict confidence and to use it only for purposes of performing obligations or exercising rights under this Agreement.

7.2 Exclusions. Confidential Information does not include information that (a) is or becomes publicly known without breach of this Agreement; (b) is received from a third party without restriction; (c) was known to the recipient prior to disclosure; or (d) is independently developed.

## 8. INTELLECTUAL PROPERTY RIGHTS

8.1 Provider Ownership. Provider retains all right, title, and interest in and to the Service, including all intellectual property rights. No ownership rights are conveyed by this Agreement.

8.2 Customer Data. Customer retains all rights in data it uploads to the Service. Provider may use aggregate, de-identified data for analytical and improvement purposes.

## 9. WARRANTIES AND DISCLAIMERS

9.1 Limited Warranty. Provider warrants that the Service will operate substantially in accordance with the published documentation under normal use.

9.2 Disclaimer. EXCEPT AS EXPRESSLY PROVIDED HEREIN, THE SERVICE IS PROVIDED ·AS IS· AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

## 10. LIMITATION OF LIABILITY

10.1 Limitation. IN NO EVENT SHALL PROVIDER'S AGGREGATE LIABILITY UNDER THIS AGREEMENT EXCEED THE

AMOUNT PAID BY CUSTOMER TO PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

10.2 Exclusion. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

## 11. TERMINATION

11.1 Termination for Convenience. Either party may terminate this Agreement upon ninety (90) days written notice to the other prior to the end of the then-current Subscription Term as per Section 3.2.

11.2 Termination for Cause. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice thereof.

11.3 Effects of Termination. Upon termination, Customer will immediately cease use of the Service and Provider shall disable Customer's access. Sections 7 (Confidentiality), 8 (Intellectual Property), 10 (Limitation of Liability), and 12 (Miscellaneous) shall survive termination.

## 12. MISCELLANEOUS

12.1 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law principles. Any dispute arising out of or related to this Agreement shall be resolved exclusively in the state or federal courts located in Santa Clara County, California. The parties hereby consent to personal jurisdiction and venue therein.

12.2 Entire Agreement. This Agreement, including all exhibits and referenced documents, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous agreements, proposals, or communications.

12.3 Amendments. No amendment or modification of this Agreement shall be effective unless in writing and signed by authorized representatives of both parties.

12.4 Notices. All notices under this Agreement shall be in writing and delivered by certified mail, courier, or email to the addresses below or such other address as either party designates in writing:

If to Provider:

ZenithCloud Solutions, Inc.  
4527 Redwood Avenue  
San Jose, CA 95123  
Email: legal@zenithcloud.com

If to Customer:

GreenWave Technologies LLC  
1021 Oak Street  
Palo Alto, CA 94301  
Email: contracts@greenwavellc.com

12.5 Force Majeure. Neither party shall be liable for delay or failure in performance due to causes beyond its reasonable control, including acts of God, labor disputes, or governmental actions.

12.6 Assignment. Neither party may assign this Agreement without the prior written consent of the other, except that Provider may assign to a successor in interest in connection with a merger or sale of all or substantially all its assets.

IN WITNESS WHEREOF, the parties hereto have caused this Software as a Service Subscription Agreement to be executed by their duly authorized representatives as of the Effective Date.

ZENITHCLOUD SOLUTIONS, INC.

By: \_\_\_\_\_  
Name: Marissa L. Caldwell  
Title: Chief Legal Officer  
Date: January 15, 2025

GREENWAVE TECHNOLOGIES LLC

By: \_\_\_\_\_  
Name: Darren T. Hsu  
Title: Managing Member  
Date: January 15, 2025

#### EXHIBIT A · SERVICE DESCRIPTION AND SERVICE LEVELS

Service: ZenithCRM - Cloud-based customer relationship management platform including contact management, sales pipeline, and reporting modules.

Service Level Objective: 99.5% uptime measured monthly. Scheduled maintenance windows typically occur Sunday 2:00 AM to 4:00 AM Pacific Time with advance notice.

Support: Email support response within 4 business hours; telephone support available during business hours.

END OF AGREEMENT